

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 650

BY RESOURCES AND CONSERVATION COMMITTEE

AN ACT

RELATING TO STATE GOVERNMENT AND STATE AFFAIRS; AMENDING CHAPTER 23, TITLE 67, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 67-2364, IDAHO CODE, TO PROVIDE FOR STATE SOVEREIGNTY AND A JURISDICTIONAL PRESUMPTION; PROVIDING SEVERABILITY; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Chapter 23, Title 67, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 67-2364, Idaho Code, and to read as follows:

67-2364. STATE SOVEREIGNTY AND JURISDICTIONAL PRESUMPTION -- LIMITATIONS ON FEDERAL POWER. (1) The legislature finds and declares that:

(a) Under the ninth and tenth amendments to the constitution of the United States and section 1, article I of the constitution of the state of Idaho, all powers not delegated to the federal government are reserved to the states respectively or to the people;

(b) The state of Idaho asserts its sovereignty and reserves all powers not expressly granted to the federal government by the constitution of the United States; and

(c) The proper balance of authority between the state of Idaho and the federal government is essential to protecting the liberties of the people of Idaho.

(2) It is the policy of the state of Idaho that jurisdiction over all matters arising within the state shall be presumed to reside with the state unless the federal government demonstrates that the constitution of the United States expressly and specifically delegates such jurisdiction to the federal government. Such presumption may be rebutted only by a clear showing that the federal government's exercise of jurisdiction is authorized pursuant to the text of the constitution of the United States.

(3) Areas in which the state has primary and inherent police power jurisdiction shall include but are not limited to:

(a) Public health and safety;

(b) Education;

(c) Water and natural resources, excluding federal reserve water rights;

(d) Agriculture;

(e) Energy;

(f) Land use and zoning; and

(g) Local economic regulation.

(4) The federal government is a government of limited and enumerated powers. Any assertion of authority based on implied, incidental, or ancil-

1 lary powers shall be narrowly construed and shall not overcome the presump-
2 tion of state jurisdiction established in subsection (2) of this section.

3 (5) In any conflict between the state and federal government regard-
4 ing jurisdiction, the state of Idaho shall assert its rights in coordina-
5 tion with the office of the attorney general, the governor, and the legisla-
6 ture. The burden shall be on the federal government to establish the consti-
7 tutional basis for any asserted jurisdiction.

8 SECTION 2. SEVERABILITY. The provisions of this act are hereby declared
9 to be severable and if any provision of this act or the application of such
10 provision to any person or circumstance is declared invalid for any reason,
11 such declaration shall not affect the validity of the remaining portions of
12 this act.

13 SECTION 3. An emergency existing therefor, which emergency is hereby
14 declared to exist, this act shall be in full force and effect on and after
15 July 1, 2026.